

24NWLC53846 24NWLC53846

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24NWLC53846: WELLS FARGO BANK, N.A. vs KELVIN H KIM, AN INDIVIDUAL

Tentative Ruling:

The Court has read and considered the moving papers filed by Defendant Kelvin H. Kim ("Defendant"), the opposing papers filed by Plaintiff Wells Fargo Bank, N.A. ("Plaintiff"), Defendant's reply papers, and all supporting declarations and exhibits.

Defendant, who is in pro per, seeks an order vacating and setting aside the judgment entered against him in this matter on March 13, 2026 after the Court granted Plaintiff's Motion for Judgment on the Pleadings. Defendant seeks to set aside the judgment pursuant to Code of Civil Procedure § 473(b) due to his "mistake, inadvertence, surprise or excusable neglect."

Plaintiff's Complaint was filed on December 4, 2024. Proof of service by substituted service was filed with the Court on May 1, 2025. Defendant, in pro per, but with the assistance of an attorney according to Defendant, filed an Answer on May 5, 2025.

Plaintiff served discovery, including Requests for Admission, on Defendant. Defendant failed to respond. On July 10, 2025, Plaintiff filed a Motion for an Order Deeming the Truth of the Matter Specified in Plaintiff's Requests for Admission as Admitted ("RFA Motion"). Defendant failed to oppose that motion. On September 19, 2025, the Court granted Plaintiff's RFA Motion.

Trial in this case was scheduled on December 10, 2025. On the day of trial, at Plaintiff's request, the Court continued trial to April 13, 2026. The Court also noted that Defendant needed a Korean interpreter at the next scheduled hearing date. There was no Korean interpreter present at the December 10, 2025 trial.

On January 5, 2026, Plaintiff filed a Motion for Judgment on the Pleadings, which was scheduled for hearing on February 11, 2026. Defendant did not appear for the hearing. There is no indication in the minute order that a Korean interpreter was present or available if Defendant had attended that hearing. The Court granted Plaintiff's motion and ordered judgment in favor of Plaintiff in the amount of \$13,038.70. The Court granted Plaintiff 30 days to file a Memorandum of Costs. When no Memorandum of Costs was filed by the next hearing on March 13, 2026, the Court did not award Plaintiff's costs of \$430.00 and entered Judgment against Defendant in the amount of \$13,038.70. Notably, on May 22, 2026, Plaintiff filed an Attorney Declaration in support of the filing of an Amended Judgment and Memorandum of Costs requesting similar forgiveness and leniency from the Court for Plaintiff's failure to calendar deadlines and for its excusable neglect in failing to submit a Memorandum of Costs.

On May 29, 2026, Defendant filed this Motion to Set Aside Judgment ("Motion") with a hearing date of August 18, 2026. Defendant argues that the "judgment resulted from substantial failures, lack of communication, and failure to take necessary procedural actions, which deprived Defendant of a meaningful opportunity to defend the case on the merits." Defendant also argued that he relied on retained counsel to handle all aspects of the case but was not adequately informed of critical developments affecting the outcome of the case and did not understand that retained counsel was not counsel of record in this case.

On July 31, 2026, Plaintiff filed its Opposition arguing that Defendant filed an Answer in pro per, and remained self-represented throughout the action. Plaintiff further argues that his arrangement with a non-appearing attorney cannot relieve him of his own obligation, as the party appearing in pro per to respond to documents served directly on him and comply with court deadlines. Defendant further argues that Plaintiff properly served Defendant with Plaintiff's discovery, meet and confer correspondence, motions and notices, and Defendant failed to respond.

On August 11, 2026, Defendant filed his Reply to Plaintiff's Opposition. He confirmed that he did not intentionally abandon the case or disregard the Court. He confirmed that he believed the case was scheduled for trial on April 16, 2025 and did not understand that judgment could be entered before trial. His conduct, combined with the Court's concern that a Korean interpreter was not provided at the earlier trial date, constitutes mistake, inadvertence, surprise and/or excusable neglect.

Pursuant to Code of Civil Procedure section 473(b), the Court may, upon any terms as may be just, relieve a party from a judgment taken against the party through "the party's mistake, inadvertence, surprise or excusable neglect." Here, Defendant attended trial in December 2025 but a Korean interpreter was not available and thus, although Defendant knew the date of the continued trial date, Defendant may not have understood that Plaintiff's RFA Motion had already been granted and that judgment could be entered via another motion prior to the trial date.

On January 5, 2026, Plaintiff filed a Motion for Judgment on the Pleadings, which was scheduled for hearing in less than 45 days. Defendant failed to oppose Plaintiff's Motion for Judgment on the Pleadings and as a result, Judgment was entered against him.

Defendant mistakenly thought that nothing could happen until the trial date in April 2026. Defendant's failure to respond to the Motion for Judgment on the Pleadings and failure to appear at the hearing where judgment was entered was a result of his "mistake, inadvertence, surprise or excusable neglect." The Court finds that Defendant was diligent in seeking relief from the Judgment when he learned that Judgment had been entered against him.

The law favors judgments on the merits. *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 981. Thus, on a motion for relief from default, "doubts must be resolved in favor of relief, with an order denying relief scrutinized [on appeal] more carefully than an order granting it." *LaSalle v. Vogel* (2019) 36 Cal.App.5th 127, 134.

Defendant has submitted a proposed Answer with his Motion. The Court will deem that Answer filed as of today's date.

The Court sets trial in this action on December 10, 2026 at 8:30 a.m. in Department Y of the Norwalk Courthouse.

Clerk to give notice.